No. CAAP-19-0000372

**IN THE INTERMEDIATE COURT OF APPEALS**
**STATE OF HAWAI'I**

LEAGUE OF WOMEN VOTERS OF HONOLULU and COMMON CAUSE,

Plaintiffs-Appellants,

v.

STATE OF HAWAI'I,

Defendant-Appellee.

CIRCUIT COURT OF THE FIRST CIRCUIT, STATE OF HAWAI'I

The Honorable Gary Won Bae Chang, Judge

# HAWAI'I STATE LEGISLATURE'S MOTION FOR LEAVE TO APPEAR AND FILE A BRIEF OF AMICUS CURIAE

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The HAWAI'I STATE LEGISLATURE ("Legislature"), by and through its undersigned counsel, respectfully moves for leave from this Court to file a brief of Amicus Curiae in support of the position of Defendant-Appellee in this appeal.[1]

The Legislature seeks leave to file a brief of Amicus Curiae because it contends it is best suited to apprise this Court of the important legal issues raised in this appeal from its perspective as one of the three co-equal branches of government. In this light, the Legislature must note that it does not concur completely with the Circuit Court's Order; specifically paragraphs 3 and 4 of the Order of the Circuit Court Granting Defendant State of Hawai'i's Motion for Summary Judgment Filed on October 9, 2018 which states as follows:

> 3. The court has no issue regarding Plaintiffs' standing. They are organizations that are dedicated to ensure integrity in the legislative process and that is what this case is about.
>
> 4. Defendant State of Hawaii's separation of powers argument is rejected. The court has the power to adjudicate the constitutional validity of statutory enactments.

The strong interest of the Legislature is to protect its constitutional prerogative of determining its own rules of proceeding to enact laws of the State of Hawai'i. The Hawai'i Constitution also protects the Legislature's rules, authorities, along with its custom and practices.

A copy of the Legislature's proposed Brief of Amicus Curiae is attached hereto as Exhibit "1."

This Motion is brought pursuant to Rules 27 and 28(g) of the Hawai'i Rules of Appellate Procedure ("HRAP"), the Memorandum in Support of said Motion, the Declaration of Counsel, Exhibit "1," and the records and files herein.

The Legislature believes that this Court will find good cause exists and respectfully asks that its motion be granted.

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[1] The Legislature respectfully informs this Court that Appellants-Plaintiffs and Defendant-Appellee have indicated that they have no objection to the Legislature's request to file a brief of Amicus Curiae. If this Motion is granted and oral argument is ordered, the Legislature will also seek to share in the time allocated to Defendant-Appellee. The Circuit Court did permit the Legislature, upon the granting of its Motion for Leave to File a Brief in Amicus in Support of the Defendant's Motion for Summary Judgment and In Opposition to Plaintiff's Cross-Motion for Summary Judgment, to share the time allocated for argument with the State in said motions. (Declaration of Colleen Hanabusa).

## I. INTRODUCTION

This Memorandum is in support of the HAWAI'I STATE LEGISLATURE'S ("Legislature") motion for leave to file a memorandum on its behalf as Amicus Curiae in support of the position of Defendant-Appellee State of Hawai'i. As stated in the Motion, Plaintiffs-Appellants and Defendant-Appellee do not object to the Legislature filing a brief as Amicus Curiae.

The Legislature seeks to file as Amicus Curiae to apprise this Court of the issues on appeal which are of great public and legal importance, and over which it has the unique insight. From the perspective of the Legislature this case concerns the separation of powers between the legislative and judicial branches of our government, albeit that the circuit court ultimately rejected the separation of powers argument. The circuit court granted the Legislature's Motion for Leave to File a Memorandum on its behalf as Amicus Curiae in Support of Defendant State of Hawai'i's Motion for Summary Judgment filed on October 9, 2018 and in Opposition to Plaintiffs' Cross-Motion for Summary Judgment filed on October 25, 2018 and permitted the Legislature to argue at the motion and cross-motion for summary judgment in the underlying case. (Record on Appeal "ROA" Part 1 or 2 shall be designated by number, 1 at 217-220).

The Legislature's interest as Amicus Curiae is that Plaintiffs-Appellees sought to have declared void Act 84 of the 2018 Session Laws; because they contend it was adopted by "gut and replace" in violation of the Constitution of the State of Hawai'i. Plaintiffs-Appellants rely specifically on Section 14 article III of the Constitution of the State of Hawai'i ("Constitution or Haw. Const.") for the proposition that "[e]ach law shall embrace but one subject, which shall be expressed in its title." Plaintiffs' Complaint Count I (ROA 1 at 19-20); and, Section 15 article III of the Haw. Const. for the proposition that "[n]o bill shall become law unless it shall pass three readings in each house on separate days." Plaintiffs' Complaint Count II (ROA 1 at 20-21).

It is the position of the Legislature that it acted within its authority under the Constitution. These issues have been debated in prior Constitutional Conventions; and the Delegates to the respective Constitutional Conventions were clear in their belief that the provisions debated

ensured flexibility to the Legislature. By bringing their Complaint, Plaintiffs-Appellants are requesting that the judiciary interfere with the Legislature's rights under the Constitution.

## II. THE AUTHORITY TO MOVE TO FILE AS AMICUS CURIAE.

Rule 28 (g) of the Hawai'i Rules of Appellate Procedure ("HRAP")[2] provides as follows:

> (g) Brief of amicus curiae. An amicus curiae brief may be filed only by leave of the appellate court. The order granting leave shall fix the time for filing the amicus curiae brief and any response thereto. The appellate court may allow or disallow the filing of such brief with or without a hearing. All amicus curiae briefs shall comply with the applicable provisions of subsection (b) of this Rule. The attorney general may file an amicus curiae brief without order of the court in all cases where the constitutionality of any statute of the State of Hawai'i is drawn into question, provided that the attorney general shall file the brief within 30 days after the filing of the answering brief, or within 30 days after notice was received pursuant to Rule 44 of these Rules, whichever period last expires.

To file an amicus curiae brief, the Legislature must seek an order from this Court by way of a motion, in accordance with Rule 27 of the HRAP. This is the Legislature's motion in compliance with the HRAP and respectfully request that it be granted for the reasons stated below.

## III. THE LEGISLATURE HAS AN INDEPENDENT INTEREST IN THE OUTCOME OF THIS APPEAL.

The Legislature is protecting its right to amend and modify a bill prior to it becoming a law. Under the doctrine of the separation of powers, the enactments of the Legislature are presumed to be constitutional; and Plaintiffs-Appellants have the heavy burden of showing unconstitutionality "beyond a reasonable doubt." *Schwab v. Ariyoshi*, 58 Hawai'i, 25, 31, 564 P.2d 135, 139 (1977). "The infraction should be plain, clear, manifest and unmistakable." *UPW v. Yogi*, 101 Hawai'i 46, 50, 62 P.3d 189, 193 (2002) (citing *State v. Bates*, 84 Hawai'i 211, 220, 933 P.2d 48, 57 (1997)). Moreover as a co-equal branches of government, the courts are "not to intrude into areas committed to the other branches of government." *OHA v. Yamasaki*, 69 Hawai'i 154, 168, 737 P.2d 446, 455 (1987). Though the circuit court found no constitutional violation in the enactment of Act 84 (2018), it did reject the State of Hawai'i's and the Legislature's arguments pertaining to the doctrine of the separation of powers of government.

[2] Rule 28 of HRAP is entitled "BRIEFS."

The Circuit Court found that it can adjudicate the "constitutional validity of statutory enactments." (ROA 2 at 226-228).

The Circuit Court at paragraph 3 in its Order found the Plaintiffs-Appellants have standing. The Legislature takes issue with the criteria adopted by the Circuit Court that "[t]hey are organizations that are dedicated to ensure integrity in the legislature process, and that is what this case is about[]" is contrary to what the Circuit Court said it was ruling on and how the Plaintiffs-Appellants represented this case.[3]

The Legislature's interest is distinct from the interests of the State because it is protecting its right to fulfill its constitutional mandate in sixty (60) days. To accomplish this task, the Constitution granted to each house of the Legislature, the right to determine its rules of proceedings. Haw. Const. article III § 12. The reference therein to when the public must be permitted to attend is for decision making in committees. Haw. Const. article III. §12.[4] In the 1968 Haw. Const. the provision in Section 16, article III which provided for a Bill in the form to be passed to lay for 24 hours was intended to provide the Legislators and the public with notice of what will be voted on at third or final reading.[5]

What is critical to the Legislature is the separation of powers between all three co-equal branches of government and how it interfaces with the issues of standing and justiciability.[6]

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[3] The Plaintiffs-Appellants and the circuit court made it clear that this complaint was only about Act 84 (2018). The Legislature argued that this case who set a precedent and it had to be viewed in light of the consequence of challenging an innocuous bill which does not mandate any action except "consideration." Plaintiffs-Appellants did not allege that they were injured by the contents of the bill. Their standing is tied only to how this passed and became law. Transcript of Proceeding of December 19, 2018 at 30-41, 43 at lines 14-22. Moreover it can be argued that the fact the Governor signed it into law, is also an intrusion into the Executive Branch of government.

[4] Though the Hawai'i State Legislature may agree with Plaintiffs statement that government should be "open, transparent, and allows for public input," that is not the issue before this Court. The Constitution in Article III specifically references that the public be permitted to attend decision making in the committees. It must be noted that even the provision that bills layover for 48 hours is intended to apply to "the members of that house" and the Constitution does not say that it is for the benefit of the public. Haw. Const. article III § 15.

[5] It is the 1978 Constitution which amended the 24 hour laying of a bill to 48 hours and renumbered the Section 16 to 15.

[6] The Legislature respectfully asks that this Court affirm the Order of the Circuit Court Granting Defendant State of Hawai'i's Motion for Summary Judgment Filed on October 9, 2018 but must note that it does not concur with paragraphs 3 and 4 which provides as follows:

> 3. The court has no issue regarding Plaintiffs' standing. They are organizations that are dedicated to ensure integrity in the legislative process and that is what this case is about.
>
> 4. Defendant State of Hawaii's separation of powers argument is rejected. The court has the power to adjudicate the constitutional validity of statutory enactments.
>
> ROA 2 at 228.

This recent Hawai'i Supreme Court decision in *Tax Foundation of Hawai'i v. State*, 144 Hawai'i 175, 439 P.3d 127 (2019) ("Tax Foundation") which was decided two (2) months after the circuit court orally ruled on the motions herein, is instructive on how the issues of standing and separation of powers are intertwined.

Standing in Hawai'i's court was explained by the majority as follows and note the reference to the separation of powers in the three co-equal branches of government as it relates to justiciability.

> In Hawai 'i courts, standing is solely an issue of justiciability, arising out of prudential concerns of judicial self-governance. *See Life of the Land II*, 63 Haw. at 171-72, 623 P.2d at 438. As explained by Justice Nakamura in *Trustees of the Office of Hawaiian Affairs v. Yamasaki*, 69 Haw. 154, 737 P.2d 446 (1987):
>
> Unlike the federal judiciary, the courts of Hawaii are not subject to a cases or controversies limitation like that imposed by Article III, § 2 of the United States Constitution. But like the federal government, ours is one in which the sovereign power is divided and allocated among three co-equal branches. Thus, we have taken the teachings of the Supreme Court to heart and adhered to the doctrine that the use of judicial power to resolve public disputes in a system of government where there is a separation of powers should be limited to those questions capable of judicial resolution and presented in an adversary context. And, we have admonished our judges that even in the absence of constitutional restrictions, they must still carefully weigh the wisdom, efficacy, and timeliness of an exercise of their power before acting, especially where there may be an intrusion into areas committed to other branches of government.
>
> Our guideposts for the application of the rules of judicial self-governance founded in concern about the proper - and properly limited - role of courts in a democratic society reflect the precepts enunciated by the Supreme Court. When confronted with an abstract or hypothetical question, we have addressed the problem in terms of a prohibition against rendering advisory opinions; when asked to decide whether a litigant is asserting legally recognized interests, personal and peculiar to him, we have spoken of standing: when a later decision appeared more appropriate, we have resolved the justiciability question in terms of ripeness; and when the continued vitality of the suit was questionable, we have invoked the mootness bar.
>
> We have also followed the teachings of the Supreme Court where political questions" are concerned ….

*Yamasaki*, 69 Haw. at 170-72, 737 P.2d at 455-56 (internal citations, quotation marks, punctuation, and footnotes omitted) (emphases added).

> Thus, Yamasaki recognizes that standing is a prudential concern in Hawai' i state courts, which are not subject to the case and controversy subject matter jurisdiction limitation of federal courts. Yamasaki also noted that standing is a prudential concern "founded in concern about the proper- and properly limited-role of courts in a democratic society." 69 Haw. at 171, 737 P.2d at 456 (citation omitted). Furthermore, our previous pronouncements that "standing principles are governed by 'prudential rules' of judicial self-governance," and that "the touchstone of this court's notion of standing is 'the needs of justice[,]' " *see, e.g.*, *Mottl*, 95 Hawai'i at 389-90, 23 P.3d at 724-25, reflect our awareness that standing is a prudential issue and not an issue of subject matter jurisdiction, as "the needs of justice" cannot eliminate the requirement of subject matter jurisdiction. In addition, as pointed out earlier, in Hawai 'i state courts, standing requirements may be tempered, or even prescribed, by legislative declarations of policy. *See Life of the Land II*, 63 Haw. at 172, 623 P.2d at 438.
>
> *Tax Foundation*, 144 Hawai'i at 142-143, 439 P.3d at 190-191 (footnotes are omitted).

The Legislature believes that the issue of standing can be raised *sua sponte* in that this Court has stated it is a "jurisdictional issue and can be addressed at any stage of a case." *Keahole Defense Coalition, Inc. v. Board of Land and Natural Resources*, 110 Hawai'i 419, 421, 134 P.3d 585, 593 (2006). In a dissenting opinion, the Chief Justice described what is justiciable as follows:

> Giving due consideration to our courts' "proper and properly limited role" in our governmental system, "judicial intervention in a dispute is normally contingent upon the presence of a 'justiciable' controversy." *Life of the Land v. Land Use Comm'n (Life of the Land II)*, 63 Haw. 166, 172, 623 P.2d 431, 438 (1981) (citation omitted). To be justiciable, a controversy must involve "questions capable of judicial resolution and presented in an adversary context." *Id.* The party seeking a judicial forum must also have standing. *See id.* ("Standing is that aspect of justiciability focusing on the party seeking a forum rather than on the issues he wants adjudicated."); *Sierra Club v. Morton*, 405 U.S. 727, 731-32, 92 S.Ct. 1361, 31 L.Ed.2d 636 (1972) ("[T]he question of standing to sue' refers to "[w]hether a party has a sufficient stake in an otherwise justiciable controversy to obtain judicial resolution of that controversy").

The "crucial inquiry" in determining standing "is 'whether the plaintiff has "alleged such a personal stake in the outcome of the controversy" as to warrant his invocation of … [the court's] jurisdiction and to justify exercise of the court's remedial powers on his behalf.' " *Life of the Land II*, 63 Haw. at 172, 623 P.2d at 438 (quoting *Warth v. Seldin*, 422 U.S. 490, 498-99, 95 S.Ct. 2197, 45 L.Ed.2d 343 (1975) ).

> We determine whether a plaintiff has alleged a "personal stake in the outcome of the controversy" sufficient to confer standing by asking: "(1) has the plaintiff suffered an actual or threatened injury … ; (2) is the injury fairly traceable to the defendant's actions; and (3) would a favorable decision likely provide relief for plaintiffs injury."

*Corboy v. Louie*, 128 Hawai'i 89, 104, 283 P.3d 695, 710 (2011) (quoting *Sierra Club v. Dep't of Trans. (Superferry I)*, 115 Hawai'i 299, 319, 167 P.3d 292, 312 (2007)).

When "assessing whether a plaintiff has standing to sue" under the three-prong test, it is "[o]f critical importance" to identify "the nature of the injury alleged" or "the theory of injury presented by the plaintiff." *Superferry I*, 115 Hawai'i at 321, 167 P.3d at 314 (citing *Cmty. Treatment Ctrs. v. City of Westland*, 970 F.Supp. 1197, 1208 (E.D. Mich. 1997) ("[T]he resolution of a standing question often depends on how the court characterizes the alleged injury.")). We have noted that "although a plaintiff may be injured in any number of ways, the injury prong of the standing inquiry requires an assertion of a judicially-cognizable injury, that is, a harm to some legally-protected interest." *Id.*

Thus, to establish a personal stake in the controversy and its outcome, a plaintiff must assert an injury, or threatened injury, to a judicially cognizable interest. *See Hawaii's Thousand Friends v. Anderson*, 70 Haw. 276, 283, 768 P.2d 1293, 1299 (1989); *Akau v. Olohana Corp.*, 65 Haw. 383, 390, 652 P.2d 1130, 1135 (1982). The plaintiffs injury, or threat of injury, cannot be "abstract, conjectural or merely hypothetical," but concrete, such that a court may fairly trace its cause and provide the parties an adequate resolution. *Life of the Land II*, 63 Haw. at 173 n.6, 623 P.2d at 446 n.6.

Courtrooms are not the place "to vindicate individual value preferences," *Hawaii's Thousand Friends*, 70 Haw. at 284, 768 P.2d at 1299, or to resolve "a difference of opinion between a concerned citizen and his elected representatives in government," *Bremner v. City & Cty. of Honolulu*, 96 Hawai'i 134, 142, 28 P.3d 350, 358 (App. 2001). A plaintiff must therefore count "himself among the injured," and "not merely air[ ] a political or intellectual grievance." *Akau*, 65 Haw. at 390, 652 P.2d at 1135.

*Tax Foundation*, 144 Hawai'i at 158-159, 439 P.3d at 206-207.

The Legislature contends that Plaintiffs-Appellants are at best raising a difference of opinion between a concerned citizen and his elected official, or an intellectual grievance. Alternatively, if an injury is suffered as a result of Act 84 (2018), it is at best abstract, conjectured or hypothetical. Plaintiffs-Appellants do not raise a justiciable controversy and both

the majority and dissent require justiciability to establish standing and the ability to call upon the courts to act.

Justice Edward Nakamura provided sage advice in Yamasaki when he stated judicial power should not be exercised unless there can be a resolution and there is a controversy. He also warned against intrusion into areas reserved for the co-equal branches of government.

## IV. THE LEGISLATURE HAS BEEN ALLOWED TO SUBMIT AN AMICUS BRIEF.

The purpose of this memorandum is to ask this Court to recognize that leave has been granted when the Hawai'i State Legislature have sought to file memoranda as amicus curiae.

The most recent example is in the case of *Nelson v. Hawaiian Homes Commission*, 141 Hawai'i 411, 412 P.3d 917 (2018). This case is referred to as "Nelson II," where the Supreme Court found that the circuit court upon remand in essence addressed "issues . . . that involve political questions." *Nelson II*, 141 Hawai'i at 412-413, 412 P.3d at 918-919. Prior to this time, the State Legislature was granted leave to file amicus briefs before the Hawai'i Supreme Court. One case is *Taomae v. Lingle*, 108 Hawai'i 245, 118 P.3d 1188 (2005). The Hawai'i Supreme Court also granted the Legislature leave to file after the Court had issued its decision and in support of the State's requested reconsideration of the Supreme Court's decision in *Sierra Club v. Dep't of Transportation*, No. 29035, 2009 WL 1567327 (May 13, 2009).[7]

Based upon the fact that the Supreme Court has granted leave to the Legislature to file amicus briefs in prior cases, the Legislature respectfully request that this Court also grants this motion for leave.

[7] This case is better known as the "Superferry" decision.

## V. CONCLUSION

The Hawai'i State Legislature respectfully submits that it can and will contribute as amicus curiae and offers a perspective that cannot be presented by the State of Hawai'i. The Hawai'i State Legislature respectfully asks this Court to grant it leave to file a brief of amicus curiae generally in a form attached hereto as Exhibit "1." In addition, assuming that oral arguments are permitted in this matter, the Legislature respectfully request that it be permitted to share in the time allocated to the Defendant State of Hawai'i.

DATED: HONOLULU, HAWAI'I, October 3, 2019

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